

Calendar Line 3

Case Name: *Estate of Marie Rosenblatt*

Case No.: 25PR199986

The above-entitled action came on for hearing before the Honorable Charles Adams on May 27, 2026, at 10:00 a.m. in Department 7. The matter having been submitted, the court finds and orders as follows:

INTRODUCTION

On April 14, 2025, attorney Marie Rosenblatt, Esq. (“Decedent”) passed away. Pursuant to a will drafted in 1976, the court issued letters of administration to Sister Susan Sanders, RSM following her successful petition for probate.

Currently before the court is a motion, by Charles J. Nagaele, Esq. (“Movant”), an attorney who worked with Decedent on the marital dissolution case, to be appointed “partial” practice administrator of the deceased attorney’s practice solely as to one specific IOLTA account containing the proceeds of a home sold in the marital dissolution case. The motion is unopposed. The motion previously came on for hearing and was continued to May 27, 2026 so that the court could receive further information from Movant. Movant has now filed a supplemental declaration.

DISCUSSION

Movant asserts that he was co-counsel with Decedent in *Martha Rogers v. Alvin Rogers*, 21FL003805, a marital dissolution case. During the pendency of the case, Decedent placed \$250,000, consisting of the proceeds of the sale of the marital home, into an IOLTA account. That case has now resulted in a judgment of dissolution and the proceeds are ready to be distributed pursuant to the judgment. Movant seeks to be named partial practice administrator over the IOLTA account.

Movant relies on Probate Code section 9674, which provides, in pertinent part, “The personal representative of the estate of a deceased attorney who was engaged in a practice of law at the time of his or her death or other person interested in the estate may bring a petition